

KLOSE LLC

A Wyoming Limited Liability Company | Real Estate Investment

EIN: 41-4409334

ASSIGNMENT OF "AS IS" CASH-OFFER PURCHASE AND SALE AGREEMENT

- 1. PARTIES:** The undersigned Klose LLC, a Wyoming Limited Liability Company (the "ASSIGNOR"), having executed an "As Is" Cash-Offer Purchase and Sale Agreement (the "INITIAL PURCHASE AGREEMENT") with _____ (the "SELLER"), for the Property identified in Paragraph 2 of this Assignment Agreement (the "ASSIGNMENT"), hereby assigns and otherwise transfers all rights, title, and interest held by Assignor in said Property to _____ (the "ASSIGNEE") in exchange for an Assignment Fee as described below.
- 2. PROPERTY:** _____, including all fixtures, appliances, other permanently installed equipment, and all other items stipulated under other provisions of this contract. All property sold by this contract is called "the PROPERTY".
- 3. AGREEMENT AND ASSIGNMENT TERMS:** Assignee shall pay a gross amount of \$ _____ (which shall include the purchase price in the Purchase and Sale Agreement being assigned and the Assignment Fee due to the Assignor).
- 4. METHOD OF PAYMENT:** ASSIGNEE warrants that at Closing they will have sufficient cash to complete the purchase under the terms of the ASSIGNMENT and can provide proof of funds if requested by the ASSIGNOR. ASSIGNEE'S method of payment (check one):
☐ Cash ☐ Private or Hard Money Lending ☐ Conventional Lending
If using lending — Lender: _____ Contact Name: _____
Email: _____ Telephone: _____
- 5. CLOSING COSTS:** ASSIGNEE expressly agrees to pay all closing costs associated with this transaction and all closing costs as detailed in the INITIAL PURCHASE AGREEMENT.
- 6. ASSIGNEE REPRESENTATIONS:** ASSIGNEE represents and acknowledges receipt of the INITIAL PURCHASE AGREEMENT prior to the execution of this ASSIGNMENT. ASSIGNEE further agrees to accept all rights, obligations, and responsibilities the ASSIGNOR has agreed to as the BUYER in the INITIAL PURCHASE AGREEMENT. Furthermore, ASSIGNEE represents that they will: 1) Perform as required in good faith and within any time periods established; 2) Indemnify and hold harmless the ASSIGNOR from any claim or demand resulting from non-performance by the ASSIGNEE; 3) Indemnify and hold harmless the ASSIGNOR for any cost or expense in junk removal, cleaning, or otherwise removing items left by the previous owner; 4) Waive any and all right to further assign this ASSIGNMENT to a third-party; 5) Acknowledge and understand that the ASSIGNOR makes no warranty of any kind incident to this ASSIGNMENT.

7. ASSIGNOR REPRESENTATIONS: ASSIGNOR represents that the INITIAL PURCHASE AGREEMENT is in full force and effect and is fully assignable, that it has not been modified, and remains on the terms contained therein.

8. CONDITION OF THE PROPERTY – "AS-IS": Except as previously disclosed in writing to ASSIGNEE, ASSIGNOR has no knowledge of any underground tanks, faulty major appliances, faulty electrical, plumbing, heating, cooling, sewer, septic, well or water systems, structural or chimney defects, or hidden or latent defects (including leakage or water seepage) in the Property. EXCEPT: _____. ASSIGNEE acknowledges that they are purchasing the Property in its present physical condition ("as is" and "where is") as of the date of Acceptance, including any defects or problems specified in this Agreement or otherwise disclosed in writing by ASSIGNOR. ASSIGNOR shall have no obligation to remove any trash, debris, personal property, or other contents remaining on or in the property prior to closing. The responsibility for all removal and disposal of such items shall lie solely with the ASSIGNEE.

9. NON-REFUNDABLE OPTION FEE: ASSIGNEE has paid or will pay immediately upon execution of this ASSIGNMENT to _____ (the "TITLE COMPANY") a non-refundable Assignment Option Fee of \$ _____ by check or wire, to be held in a non-interest-bearing escrow account. Said Non-Refundable Option Fee shall be credited to the ASSIGNEE toward the total Assignment Contract Price. This ASSIGNMENT is non-binding until the Non-Refundable Option Fee is received by the TITLE COMPANY. ASSIGNEE has 24 hours to produce the Non-Refundable Option Fee; if not received, ASSIGNOR may continue marketing the property. The Non-Refundable Option Fee will be returned to ASSIGNEE only if ASSIGNOR cannot convey marketable title to the PROPERTY.

Required Non-Refundable Option Fee by Contract Price:

A. ≤ \$50,000 = \$2,500 Option Fee

B. \$50,000 up to \$200,000 = \$5,000 Option Fee

C. \$200,000+ = \$10,000 Option Fee

(Parties may negotiate a different amount in writing.)

10. CLOSING: ASSIGNOR will deliver this ASSIGNMENT to the TITLE COMPANY upon execution by both parties. Closing shall occur on or before _____, or within seven (7) days after objection to title has been cured.

11. TITLE POLICY: The SELLER shall furnish to ASSIGNEE at ASSIGNEE'S expense an Owner's Policy of Title Insurance issued by the TITLE COMPANY in the amount of the Sale Price, dated at or after closing, insuring ASSIGNEE against loss under the provisions of the Title Policy.

12. DEFAULT: If the ASSIGNOR is unable to perform, the ASSIGNEE'S express and sole remedy shall be limited to the termination of the ASSIGNMENT and return of an amount equal to the Non-Refundable Option Fee. If ASSIGNEE fails to comply herewith for any reason, ASSIGNOR may either enforce specific performance or terminate this ASSIGNMENT and retain the Non-Refundable Option Fee, thereby releasing all parties. If ASSIGNOR files suit for breach or enforcement, ASSIGNOR shall be entitled to recover all costs of such enforcement, including reasonable attorney's fees.

13. MARKETABLE TITLE ACKNOWLEDGEMENT: At the time of this Agreement, Seller owns a Contract for Sale & Purchase of the subject property. Buyer acknowledges that Seller currently does not own fee simple title to the subject property. This sale is contingent upon Seller obtaining marketable title. If Seller is unable to obtain marketable title, Seller shall return Buyer's option money, and this Agreement is void with no further obligations between parties.

14. HOLD HARMLESS AND ASSUMPTION OF LIABILITY: In the event the Assignee has any damages or other liabilities caused by a third party, Assignor is to be held harmless by the Assignee for these damages or other liabilities. This specifically includes any third parties' duty to perform under a contract with the Assignor. Assignee understands and assumes the risk of loss for any liability caused by a third-party action.

15. ENTIRE AGREEMENT OF PARTIES: This contract contains the entire agreement of the parties and cannot be changed except by their written agreement.

16. SPECIAL PROVISIONS: _____

Klose LLC

—
Assignor Signature
Assignor Printed Name / Title
Date: _____

—
Assignee Signature
Assignee Printed Name
Date: _____

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WORKING WITH KLOSE LLC INVESTOR DISCLOSURE STATEMENT

WORKING WITH KLOSE LLC – INVESTOR DISCLOSURE

I, the undersigned, acknowledge and understand that Klose LLC ("Klose") is a for-profit real estate investment company organized under the laws of Wyoming and operating in multiple states including Alabama. Klose specializes in the acquisition and disposition of off-market real estate assets. Accordingly, the undersigned acknowledges the following:

1. Klose is a real estate investor and is NOT a licensed real estate broker or agent. No brokerage or agency relationship is created by any agreement with Klose.
2. Klose holds an equitable interest in the subject property through a Purchase and Sale Agreement, which allows Klose to market the property for sale or assignment.
3. Klose is not currently the fee simple owner of the property at the time of assignment.
4. This transaction is contingent upon Klose obtaining marketable title to the property.
5. Marketable title means the property's title is free from significant liens, disputes, or legal issues that could question the seller's right to transfer ownership.
6. The parties agree to use _____ (Title Company) to determine marketable title, handle the closing, and issue title insurance, unless otherwise agreed in writing.
7. If Klose is unable to obtain marketable title, Klose shall return the undersigned's option/earnest money, and all agreements shall be void and unenforceable.
8. The closing may occur through: (a) Assignment of Contract, (b) Simultaneous Closing, or (c) Traditional Purchase.
9. This property is sold as-is, where-is. Klose will not be responsible for cleaning, removing, or disposing of any items from the property prior to closing.
10. The undersigned is encouraged to seek independent legal counsel prior to executing any agreement with Klose.

ACKNOWLEDGMENT

I/We have read and understand this disclosure. By signing below, I/we agree to the terms and conditions stated above.

Buyer/Assignee Signature

Buyer/Assignee Printed Name

Date: _____

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NOTICES & DISCLOSURES

NOTICE OF NON-REPRESENTATION

You are hereby notified that Klose LLC and its members, managers, and employees do **not** represent you in any capacity as a real estate broker or agent.

You should not assume that any representative of Klose LLC represents your interests unless you separately engage a licensed real estate agent or attorney. You are advised not to disclose any information you want held in confidence until you decide on representation.

Your signature below acknowledges receipt of this notice and does **not** establish a brokerage relationship.

Buyer/Assignee Signature

Buyer/Assignee Printed Name

Date: _____

FAIR HOUSING STATEMENT

It is illegal discrimination under the Federal Fair Housing Law, 42 U.S.C.A. 3601 to take any of the following actions because of race, color, religion, sex (including gender identity and sexual orientation), disability, familial status, or national origin: Refuse to rent or sell housing; Refuse to negotiate for housing; Set different terms, conditions or privileges for sale or rental of a dwelling; Provide different housing services or facilities; Falsely deny that housing is available for inspection, sale or rental; Make, print or publish any notice, statement or advertisement indicating any preference, limitation or discrimination; Impose different sales prices or rental charges; Use different qualification criteria; Evict a tenant or tenant's guest; Harass a person; Fail or delay maintenance or repairs; Limit privileges, services or facilities of a dwelling; Discourage the purchase or rental of a dwelling; Assign a person to a particular building or neighborhood (blockbusting); Refuse to provide or discriminate in the terms or conditions of homeowners insurance because of any protected characteristic.

AFFILIATED BUSINESS DISCLOSURE

Klose LLC and/or its affiliated companies and/or its management may have relationships with certain service providers, including title companies and lenders. Referrals to such providers may provide Klose LLC with a financial benefit.

You are NOT required to use any specific title company, lender, or settlement service provider as a condition of your purchase or sale. There are frequently other providers available with similar services. You are free to inquire with other providers to determine whether you are receiving best services at competitive rates.

By signing below, I/We acknowledge receipt of the Fair Housing Statement and the Affiliated Business Disclosure and understand that Klose LLC may refer us to certain service providers and may receive a financial or other benefit as a result.

Buyer/Assignee Signature

Buyer/Assignee Printed Name

Date: _____